

Common Question of Law or Fact

There are common questions of law and fact between the two cases. Both cases share significant facts because they both share the same triggering event, Plaintiff's inheritance of her mother's property. Both cases share common questions of law because both allege violations of the Unruh Civil Rights Act and Fair Employment and Housing Act (FEHA). The main difference is that Plaintiff complains about both age and marital status discrimination in the Occupancy Case and complains of marital status discrimination in the Fee Policy Case.

Two Types of Consolidation

When two actions are consolidated "for all purposes," "the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp.*, *supra*, 22 Cal.4th at p. 1147; see *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396 ["the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered"].) And "'for the purposes of all further proceedings, the cases are to be treated as if the causes had been united originally.'" (*McClure v. Donovan* (1949) 33 Cal.2d 717, 722.) "In other words, the actions are viewed as if the same plaintiff or plaintiffs had filed a single complaint on joined causes of action against the same defendant or defendants." (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 862-863; citing 4 Witkin, Cal. Procedure (6th ed. 2023), Pleading, § 360.)

The January 26, 2026, minutes does not specify if the cases are consolidated for all purposes or are consolidated for trial only. (C25-02665 January 26, 2026, Minute Order.)

Both cases revolve around the same triggering event of Plaintiff's inheritance of her mother's real property. Plaintiff accurately points out that the Defendants are different in each case and the causes of action against each of them require different evidence with some overlap. These differences are enough for the Court to clarify its January 26, 2026, order to order C25-02665 consolidated with the lead case C24-03039 for the purposes of trial only.

Conclusion

Plaintiff's Motion for Reconsideration is **denied**. The Court clarifies that Case No. C24-03039 and Case No. C25-02665 are **consolidated only for the purposes of trial**.

17. 1:30 PM CASE NUMBER: C25-00195
CASE NAME: STATE FARM GENERAL INSURANCE COMPANY VS. DOES 1-20
***HEARING ON MOTION IN RE: LEAVE TO INTERVENE**
FILED BY: STATE FARM GENERAL INSURANCE COMPANY
TENTATIVE RULING:

This case arises out of alleged water damage resulting from a cracked pipe, occurring at the property of Jay and Stephanie Snyder. The case was filed by their insurer, State Farm, as a subrogation action. In this motion, the Snyders seek to intervene as plaintiffs, seeking to recover out-of-pocket losses not covered by State Farm. The motion is **unopposed**, and indeed it is unexplained why it was not stipulated. The motion is **granted**.

Moving party shall prepare a proposed order that conforms to this ruling, attaching a copy of this

tentative ruling.

The Snyders are ordered to file and serve their complaint in intervention no later than fourteen (14) days from of entry of this order.

18. 1:30 PM CASE NUMBER: C26-00183
CASE NAME: AURA MANAGEMENT CO. VS. ERIC DOLL
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT**
FILED BY: DOLL, ERIC
TENTATIVE RULING:

See line 19, below.

19. 1:30 PM CASE NUMBER: C26-00183
CASE NAME: AURA MANAGEMENT CO. VS. ERIC DOLL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

Summary

Defendants Eric Doll and Venbrook Group, LLC's Demurrer to the Complaint is **overruled**.

Defendants' Motion to Strike the prayer for injunctive relief in Paragraph 63 is **granted** with 20 days' leave to amend. In all other respects, the Motion to Strike is **denied**.

Plaintiffs shall prepare the order and file and serve notice of entry of order.

Background

Plaintiffs Vision of Success, Inc., Bay Area Gold Standard Management, Inc., and Aura Management Co. operate and manage "convenience-store-related" businesses in California (Compl. ¶ 12). Defendants are insurance broker Eric Doll and insurance brokerage firm Venbrook Group, LLC, Doll's employer. This dispute arises from Defendants' alleged marketing and placement of Plaintiffs into a purported "captive" workers' compensation insurance program that Defendants represented would reduce Plaintiffs' premiums and improve Plaintiffs' risk profile, but which Defendants allegedly procured using inaccurate payroll and exposure assumptions. Plaintiffs allege Defendants induced them to purchase the program and make related financial commitments by materially understating Plaintiffs' payroll and exposures and by withholding material information, including the true premium risk and Defendants' financial incentives and commissions.

Plaintiffs allege that after relying on Defendants' representations, Plaintiffs were assessed audit results and premium demands far in excess of what Defendants had quoted and represented, alongside